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SEAQUAL INITIATIVE

License number: 21052702FR

TRADEMARK & COPYRIGHT LICENSE AGREEMENT

(for merchandising goods containing SEAQUAL YARN)

Between:

LICENSOR:

SEAQUAL 4U S.L. (hereinafter "SEAQUAL"), a company organized and existing under the laws of Spain and legally registered at address C/ Josep Hereu i Aulet 8, 2nd Floor, 17160 Anglès, Girona, Spain and with tax number B87669990

And

LICENSEE:

Company's legal name: Factory plast

Trading as: GreenDesk

A company organized and existing under the laws of: France

Tax number: 41895154700029

Legally registered address: 161 Avenue Franklin Roosevelt Décines-Charpieu 69150

PREAMBLE

SEAQUAL operates SEAQUAL INITIATIVE. SEAQUAL INITIATIVE promotes and supports ocean clean-ups. The main goal of SEAQUAL INITIATIVE is to fight and raise awareness of the problem of marine litter. SEAQUAL INITIATIVE is based on 4 pillars:

1- Enabling ocean cleaning: retrieving, collecting and sorting marine litter by engaging NGOs, fisheries, local communities, authorities and waste management companies;

2- Engaging industries: engaging recyclers, manufacturers and brands to transform plastic marine litter into UPCYLED MARINE PLASTIC and then into everyday products, including merchandising items;

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3- Communicating: raising awareness of the plastic pollution issue by informing industries, lobbying authorities and educating and sensitizing society.

4- Inspiring consumers and communities: it is essential that consumers are aware that the product they are purchasing/receiving contains UPCYCLED MARINE PLASTIC and that they are supporting SEAQUAL INITIATIVE in its fight against marine litter.

SEAQUAL is not a FINAL PRODUCT brand. FINAL PRODUCTS using UPCYCLED MARINE PLASTIC as an ingredient shall be put on the market under the manufacturer's brand. All parties involved in the supply chain, such as manufacturers, brands, distributors and retailers shall mention SEAQUAL INITIATIVE in their marketing materials, such as web pages, social media, media press and merchandising. The purpose of this Agreement is to ensure material traceability and to regulate the collaboration between SEAQUAL and LICENSEE, in particular, under which conditions they can use the SEAQUAL TRADEMARKS and SEAQUAL COPYRIGHT, in order to maximize the impact of SEAQUAL INITIATIVE.

LICENSEE is a MERCHANDISING COMPANY, or an ENTITY, wishing to contribute to SEAQUAL INITIATIVE by selling PROMOTIONAL ITEMS to other entities and/or by selling or giving away PROMOTIONAL ITEMS to the public, always communicating SEAQUAL INITIATIVE to the public.

In consideration of the mutual rights and obligations of the parties herein, LICENSOR and LICENSEE agree to the following trademark licensing terms and conditions:

1. DEFINITIONS

a) **SEAQUAL TRADEMARK**: a trademark consisting of the term SEAQUAL in word or together with figurative elements, either filed or registered under any jurisdiction at the date of the Agreement, or to be subsequently filed or registered. The SEAQUAL registered TRADEMARKS at the date of this Agreement are listed at www.seaqual.org/faqs/ under 'SEAQUAL LICENSE'.

b) **SEAQUAL COPYRIGHT**: marketing and communication materials made available by SEAQUAL for download to all LICENSEES via their user account at www.seaqual.org. These marketing and communications materials are owned exclusively by SEAQUAL or SEAQUAL has been authorized by third-party right holders to use them. These materials comprise visual, audio and written elements such as logos, tag lines, videos, photos and digital files. For the sake of clarity, SEAQUAL COPYRIGHT under this Agreement does not include any materials created by SEAQUAL, or that SEAQUAL otherwise owns, for the exclusive use of a specific LICENSEE.

c) **UPCYCLED MARINE PLASTIC:** polymer recycled from plastic marine litter and processed at recycling plants approved by LICENSOR.

d) **SEAQUAL YARN**: yarn containing UPCYCLED MARINE PLASTIC.

e) **TEXTILES:** any textile produced directly, in whole or in part, from SEAQUAL YARN. For the purpose of clarity, this includes textiles produced directly from yarn, for example fabrics, seamless garments, cords and straps. It does not include textile goods made from fabrics, such as clothing.

f) **AFFILIATE**: any company, corporation or business in which LICENSEE owns or controls at least fifty percent (50%) of the voting stock or other ownership. In this Agreement, the term LICENSEE includes AFFILIATES.

g) **PROMOTIONAL ITEMS**: any final goods containing UPCYCLED MARINE PLASTIC –

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e.g. T-shirts, caps, towels, bags – that are purchased by an ENTITY: i) for its own use or ii) to be sold or given free of charge to the public; in either case, for the purpose of promoting the ENTITY's own brand or business, or a public interest cause in which the ENTITY is involved.

h) **MERCHANDISING COMPANY**: a commercial company that designs and manufactures (directly or by commission to third parties) PROMOTIONAL ITEMS that are offered for sale to ENTITIES.

i) **ENTITY:** A company, individual or non-profit organization that purchases PROMOTIONAL ITEMS.

2. GRANTS

LICENSOR hereby grants LICENSEE a non-exclusive, non-transferable revocable license to the SEAQUAL TRADEMARKS and SEAQUAL COPYRIGHT, for use according to the SEAQUAL Brand Guidelines.

All rights not specifically granted to LICENSEE are reserved to LICENSOR.

3. FIELD OF USE

This Agreement grants LICENSEE permission:

a) Where LICENSEE is a MERCHANDISING COMPANY: to purchase PROMOTIONAL ITEMS made with SEAQUAL YARN and sell them to ENTITIES, with the obligation for those ENTITIES to always communicate SEAQUAL INITIATIVE to the public.

b) Where LICENSEE is an ENTITY: to purchase PROMOTIONAL ITEMS made with SEAQUAL YARN for sale or to give away to the public, with the obligation to always communicate SEAQUAL INITIATIVE to the public.

4. ROYALTY

a) In consideration of the license for the use described in 3a), LICENSEE shall pay LICENSOR a royalty for every PROMOTIONAL ITEM sold, or otherwise disposed of, by LICENSEE in any country of the world. This royalty shall amount to 5% of the net selling price of the PROMOTIONAL ITEM. Net selling price shall mean the invoice price, excluding transportation costs and taxes.

b) In consideration of the license for the use described in 3b) the license is royalty-free where the PROMOTIONAL ITEM is given away to the public. Where the PROMOTIONAL ITEM is sold to the public, the license is subject to a royalty amounting to 3% of the net retailing price of the PROMOTIONAL ITEM. Net retailing price shall mean the public selling price, excluding taxes.

5. LICENSEE OBLIGATIONS

Traceability & Certification - LICENSEE undertakes to:

a) Where LICENSEE is a MERCHANDISING COMPANY:

i. Only purchase PROMOTIONAL ITEMS from SEAQUAL Licensees.

ii. Only purchase PROMOTIONAL ITEMS that have been certified by SEAQUAL LAB and have a corresponding 'SEAQUAL Certification Number'. This is to ensure the presence of UPCYCLED MARINE PLASTIC and ensure they meet the minimum content requirements for SEAQUAL

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YARN.

iii. Only sell PROMOTIONAL ITEMS to ENTITIES which have a SEAQUAL Merchandising License.

iv. Ensure that the 'SEAQUAL Certification Number' is always communicated to the ENTITIES.

b) Where LICENSEE is an ENTITY:

i. Only purchase PROMOTIONAL ITEMS from a MERCHANDISING COMPANY which has a SEAQUAL Merchandising License.

ii. Only purchase PROMOTIONAL ITEMS that have been certified by SEAQUAL LAB and have a corresponding 'SEAQUAL Certification Number'. This is to ensure the presence of UPCYCLED MARINE PLASTIC and ensure they meet the minimum content requirements for SEAQUAL YARN.

Communication - LICENSEE undertakes to:

c) Use the SEAQUAL TRADEMARK and SEAQUAL COPYRIGHT according to the SEAQUAL Brand Guidelines in force at any given time. A set of the current SEAQUAL Brand Guidelines is provided to LICENSEE prior to signature of this Agreement. Any possible amendments to the SEAQUAL Brand Guidelines shall be provided immediately to LICENSEE.

d) Make reference to SEAQUAL INITIATIVE in their public communication, marketing and advertising. To this end, LICENSEE must ensure that the information communicated is correct, accurate and in agreement with the SEAQUAL Brand Guidelines and the data and information provided by LICENSOR. LICENSOR reserves the right to request that any communication, marketing and/or advertising that does not meet these requirements is corrected immediately. LICENSEE may use the SEAQUAL COPYRIGHT materials provided to all licensees for download at www.seaqual.org. Any marketing and communication materials created by LICENSEE referencing SEAQUAL INITIATIVE must be approved before use at digital@seaqual.com.

e) Clearly and evidently communicate their support for SEAQUAL INITIATIVE. These communications must always follow the SEAQUAL Brand Guidelines.

f) Never communicate the use of plastic obtained from the marine environment by SEAQUAL INITIATIVE and its partners, or the ocean cleaning programs operated by SEAQUAL INITIATIVE and its partners, without making explicit reference to SEAQUAL INITIATIVE.

g) Never change the name of SEAQUAL YARN. Always make explicit reference to SEAQUAL YARN or SEAQUAL INITIATIVE when describing goods containing SEAQUAL YARN.

h) Never communicate SEAQUAL INITIATIVE jointly with any other ocean cleaning organization in the same marketing material.

i) Never communicate SEAQUAL YARN jointly with any other polyester fiber that contains recycled marine waste in the same marketing material.

j) Not request marketing content (interviews, pictures, stories, etc) directly from

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individuals or entities which are or have been involved with SEAQUAL INITIATIVE projects (for instance, SEAQUAL Heroes). Any materials related to these collaborations may be developed by SEAQUAL and made available for download to LICENSEES. SEAQUAL shall not approve any marketing materials submitted by LICENCEE pursuant to clause 5 h) which include contents obtained directly from the above-mentioned individuals or entities.

Other - LICENSEE undertakes to:

k) Allow LICENSOR to publicly list LICENSEE as a SEAQUAL Licensee.

l) (If the PROMOTIONAL ITEM contains injection molded plastics) Make best efforts to use plastics containing UPCYCLED MARINE PLASTIC, when and where available.

6. LICENSOR OBLIGATIONS

LICENSOR undertakes to:

a) Give LICENSEE access to the use of the SEAQUAL TRADEMARK according to the Guidelines.

b) Give LICENSEE access to and permit the usage of SEAQUAL COPYRIGHT according to the SEAQUAL Brand Guidelines.

7. REPORTING AND INSPECTION

a) LICENSEE is obliged to report all purchases and sales of PROMOTIONAL ITEMS to SEAQUAL by providing the following information via the online 'Material Traceability Report' at www.seaqual.org:

i. The date of the transaction.

ii. The SEAQUAL Licensee number of the supplier or customer.

iii. The quantity of PROMOTIONAL ITEMS (number of items) bought or sold.

iv. The 'SEAQUAL Certification Number' for each PROMOTIONAL ITEM bought or sold.

v. The selling or retailing price (as applicable) corresponding to the PROMOTIONAL ITEMS sold during the reported quarter.

vi. The calculation of the royalty due under this Agreement.

LICENSEE can report sales and purchases individually at the time of the transaction or make a quarterly report no later than thirty (30) days after January 1st, April 1st, July 1st and October 1st of each calendar year. Reports must be submitted even if no sales have been made. In the quarterly report, the LICENSEE shall provide LICENSOR with a report detailing all orders that LICENSEE has placed or fulfilled for PROMOTIONAL ITEMS in the most recent (3) month period.

All information reported will be treated as confidential.

b) LICENSEE must pay the due royalty within 30 days of the reporting date. If payment is not made during such period, a 2% interest per month shall accrue.

c) LICENSEE shall keep accurate records (together with supporting documentation) of the matters reported. They shall be available during normal business hours for examination by an accountant selected by LICENSOR, for the sole purpose of verifying reports. Such

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examination by LICENSOR's accountant shall be at its own expense.

8. INFRINGEMENT

a) LICENSEE shall promptly notify LICENSOR in writing of any manufacture, distribution, sale or advertisement of any product or service of which it becomes aware that may constitute an infringement of the SEAQUAL TRADEMARK or the SEAQUAL COPYRIGHT Materials.

b) LICENSOR shall have the sole right to determine the appropriate actions that may be taken in the situations mentioned in clause 9a). LICENSEE shall provide LICENSOR with such reasonable assistance at LICENSOR's sole expense including, but not limited to, any information required for litigation purposes. LICENSEE shall not have any rights or claims against LICENSOR for damages or other result arising from any determination by LICENSOR to take or not to take action in such situations.

c) LICENSOR warrants that no legal action or threat of legal action concerning the SEAQUAL TRADEMARK or the SEAQUAL COPYRIGHT exists at the date of this Agreement. However, LICENSOR does not warrant that such actions will not exist in the future. In the event of a third-party claim directed against LICENSEE, LICENSEE shall immediately inform LICENSOR. LICENSOR shall **not** indemnify in respect of any third-party claim caused by LICENSEE's use of the SEAQUAL TRADEMARK or the SEAQUAL COPYRIGHT Materials.

d) LICENSEE shall protect, defend, indemnify and hold harmless LICENSOR, its shareholders, directors, officers, and employees from and against any and all claims, demands, losses, suits, liabilities or expenses for property damage, injury or death of persons resulting from or arising from the negligence or intentional or unintentional wrongful acts of LICENSEE, its subcontractors (and their employees and agents), or its invitees, during or in connection with the use of LICENSEE's products.

9. CONFIDENTIALITY

Each party ("Receiving Party") may obtain information about the other party´s business and technology that the other party ("Disclosing Party") considers to be confidential. In order to promote the free exchange of information, each party agrees to maintain the information that it receives from the other party in confidence and not disclose it to any third party for three (3) years after the expiration or termination of this Agreement. This obligation of confidentiality, however, shall not apply to information that: (i) as shown by reasonably documented proof, was in the receiving Party's possession prior to the disclosure by the disclosing Party; (ii) is known to the public at the time of its disclosure or becomes known to the public after the disclosure through no fault of the Receiving Party; (iii) the Receiving Party can show was in its possession after the time of the disclosure from a third party not under an obligation of secrecy to the Disclosing Party; (iv) is required to be disclosed by law.

10. TERM AND TERMINATION

a) This Agreement is for a term of two years starting from the date of the Agreement. However, either party may terminate it at any time upon sixty (60) days' prior written notice. In the event of a breach of the Agreement by the other party, the Agreement may be terminated immediately and without prior written notice by the injured party. Once the two-year term has expired without the Agreement having been terminated by any party, the Agreement shall be automatically renewed for successive two-year periods. Upon the termination or expiration of the Agreement, LICENSEE must discontinue all use of the TRADEMARKS and SEAQUAL COPYRIGHT Materials.

b) Upon the termination or expiration of this Agreement, except when it is due to a breach by LICENSEE, the latter should fulfil open orders and may continue distribution and sale of products bearing the SEAQUAL TRADEMARK or SEAQUAL COPYRIGHT Materials which had been manufactured prior to the termination or expiration of this Agreement until full exhaustion of the stock of such products but in any case within 6 months after termination or expiration of the agreement.

11. CHOICE OF LAW AND JURISDICTION

This Agreement is acknowledged to have been made in and shall be constructed in accordance with the laws of Spain. Any actions under this Agreement shall be brought only in the courts of Barcelona (Spain). LICENSEE hereby submits to the exclusive jurisdiction of such courts.

12. **NON – ASSIGNMENT.** Neither this Agreement nor the rights or obligations herein can be assigned or transferred by LICENSEE, in whole or in part, voluntarily or involuntarily or by operation of law without the prior written consent of LICENSOR.

Once the Agreement has been formally terminated, it will still bind the parties until all pending issues have been resolved (for instance, regarding sale of inventory.)

Nothing in this Agreement shall be construed to make LICENSEE an agent or partner with LICENSOR or to permit LICENSEE to bind LICENSOR in any manner.

The date of this Agreement shall be the date of signature by LICENSOR.

LICENSOR		**LICENSEE**	
Signature:	DocuSigned by: Michel Chtepa 34A0BD4083DF4AB...	Signature:	DocuSigned by: DEMONCEAUX 265EDE034F084C7...
Printed Name:	Michel Chtepa	Printed Name:	DEMONCEAUX
Title:	Managing Director	Title:	DG
Date of Signature:	5/31/2021	Date of signature:	5/28/2021